

Services Agreement (SIL)

VERSION 1.0	EFFECTIVE	NEXT REVIEW	OWNER Principal / Key Management Personnel	APPROVED BY Governing body
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This agreement is made between [] (ABN [], []) and the client named below.

This agreement covers supported independent living (SIL) supports, which may be delivered in a shared living arrangement or in specialist disability accommodation.

KEY DETAILS

CLIENT FIRST NAME

CLIENT LAST NAME

CLIENT DATE OF BIRTH

CLIENT PHONE / MOBILE

CLIENT EMAIL

REPRESENTATIVE FIRST NAME (IF ANY)

REPRESENTATIVE LAST NAME

REPRESENTATIVE RELATIONSHIP

REPRESENTATIVE PHONE / EMAIL

[] TO INVOICE

☐ Us directly (self-managed) ☐ Plan manager (plan-managed) ☐ NDIA directly ☐ Plan nominee

DATE OF THIS AGREEMENT

SCHEDULED REVIEW DATE

WORKER MONITORING FREQUENCY (IN-PERSON SUPERVISION) · OTHER-PROVIDER CONSULTATION FREQUENCY · COMMUNICATION PREFERENCES

HAS THE CLIENT BEEN PROVIDED THIS AGREEMENT? DATE AND METHOD

PLAN MANAGEMENT DETAILS

Complete this section where all or part of the Plan is managed by a registered plan management provider.

[] will send invoices for plan-managed supports to the plan manager at the details below and will keep this section current if the plan manager changes.

PLAN MANAGEMENT PROVIDER (BUSINESS NAME)

PLAN MANAGER CONTACT PERSON

PHONE

EMAIL FOR INVOICES

BILLING / POSTAL ADDRESS**SERVICES & SUPPORTS SCHEDULE**

The supports [] will provide under this agreement are set out below. They can be adjusted in consultation with [] as the client's needs, goals and preferences change; an updated schedule signed by the parties replaces this one and forms part of this agreement.

SUPPORT (DESCRIPTION)	PRICE	APPOINTMENT TIMES	DATES	LOCATION(S)	DURATION
Total cost per week					

PLAN BUDGET LINES / FUNDING CATEGORIES THIS SCHEDULE DRAWS ON · AGREED REVIEW POINT**1. Purpose of this agreement**

This agreement documents a personalised and self-directed support arrangement between [] and you. Please make sure your details and those of your representative (if any) are accurate on page 1.

It is made in accordance with the rules and goals of the NDIS and to provide the Services to you in accordance with your Plan. The NDIS aims to support the independence and social and economic participation of people with disability and to enable people with disability to exercise choice and control.

2. The Services we provide

You, your representative and [] will work together — through your intake form, initial consultations, this agreement and support planning — to agree the specific Services, appointment times, locations and workers. The agreed Services are set out in writing, usually in the Services & Supports Schedule, and can be adjusted in consultation with us as your needs, goals and preferences change. If your Plan details differ from the NDIS portal, [] provides the Services according to the portal.

You and your representative agree to: [] assessing and reviewing your Plan; discussing your Plan with the NDIA and its contractors and with other providers; claiming travel, non-face-to-face and NDIA-requested-report supports to the extent permitted under the NDIS Rules; providing the Services in line with this agreement and your

support plan; being interviewed and having records reviewed for auditing purposes; and the terms of []'s policies.

3. Supported independent living

If the Services include supported independent living, there may be a relationship between [] and your accommodation provider. Where there is, [] will explain any real or perceived conflict of interest in a way you are most likely to understand and make clear that choosing an alternative accommodation provider will not affect your SIL services.

Where [] provides SIL and there are no house rules, [] will assist to develop house rules about the quiet use, enjoyment and management of the housing, consistent with any building rules and with the input of the people who live there. [] keeps a copy and gives one to you and the accommodation provider. Where SIL is provided in specialist disability accommodation, [] enters into an SDA and SIL Collaboration Agreement with the SDA provider and you.

4. Your consent to services

Your informed consent is required for the Services. If you are a child, consent is also given by a parent or legal guardian. You may withdraw consent for any specific service at any time and it will cease immediately.

Like any service there are benefits and risks; [] workers will discuss any foreseeable risks before providing a service. Workers may ask personal questions to make the Services more effective — it is your choice what you share — and may need to make physical contact to provide support, with consent assumed for the term of this agreement unless you tell us otherwise. Please tell us if you have a heart condition, seizures, severe respiratory conditions, severe allergies, severe phobias, or a history of absconding. Assessment records, and any video, photos, written records and work samples, are kept in your confidential client file in accordance with the Privacy and Dignity Policy.

5. Fees for the Services

[] charges for the Services and you must pay for the Services provided. Expenses not funded under your Plan are your responsibility. Prices follow the NDIS Pricing Arrangements and are automatically adjusted when those change. Where permitted under the NDIS Rules, [] may also charge an establishment fee, a centre-based-care capital-cost allowance, shadow-shift costs where you have complex support needs, and the cost of preparing and delivering meals (the food itself is not covered by your Plan).

[] is paid by one or a combination of: you paying our invoice within seven days (self-managed); your plan nominee paying within seven days; a claim to the NDIA (NDIA-managed); or a claim to your registered plan management provider (plan-managed). Where payment cannot be obtained from a nominee, the NDIA or a plan manager, you must ensure all amounts due for Services provided to you are paid.

6. Your rights and our responsibilities

During this agreement [] will: act with respect for your rights to freedom of expression, self-determination and decision-making; respect your privacy and your right to intimacy and sexual expression; provide the Services safely and competently with care and skill; act with integrity, honesty and transparency; promptly raise and act on concerns about quality and safety; take all reasonable steps to prevent and respond to violence, exploitation, neglect, abuse and sexual misconduct; arrive at the agreed time ready to deliver the Services; comply with all applicable laws including the NDIS Act and Rules, the Australian Privacy Principles and the Australian Consumer Law; treat you with dignity and respect and value your legal and human rights and your right to make informed choices; make reasonable efforts to involve you in selecting your workers (including preferred gender for personal care); ensure workers who provide monitoring or daily support are appropriately trained; notify you of

changes to appointments; provide a safe space for delivery with your reasonable assistance; provide a photo of your workers on request; treat your information as confidential; provide timely invoices; communicate openly and promptly; keep accurate records; and contact the NDIA about your Plan when necessary.

Advocacy. You have the right to be represented by an advocate at any time — a family member, friend, medical practitioner or an advocacy body — and [] encourages the use of advocates during assessment and planning and can provide a list of advocacy bodies on request.

Significant risk factors. For any client who is Subject to a Significant Risk Factor, [] will not allow personal support to be provided by a sole worker unless it has assessed the risk factors and has (or has made all reasonable efforts to enter) a written service agreement, will document and provide a copy of that assessment, update it when circumstances change, apply a documented supervision plan with regular reports to key management personnel, and take prompt action on any concerns.

Emergency and disaster management. If your regular worker becomes unavailable because of an emergency or disaster, [] will: (1) find a suitably qualified worker to fill in temporarily; (2) if that is unworkable, engage an external agency or recruit; and (3) if the absence becomes permanent, recruit a new worker. Where changes are unavoidable they are explained and agreed with you. Further detail is in the Business Continuity and Disaster Management Plan.

7. Responsibilities of the client

You and your representative agree to: tell [] about any concerns with the Services; be actively involved in designing the support plan and setting and monitoring goals; ensure fees can be met within your approved Plan funding and that invoices are paid promptly and in full; immediately tell [] if you stop being an NDIS participant or if you suspend or change your Plan, and provide a copy of any revised Plan; keep [] informed of changes in circumstances (where you live, medication and medical treatments, behavioural changes affecting safe delivery, guardianship and care arrangements); be at the agreed location at the agreed time; and treat all workers and others present with respect and abide by []'s policies.

8. Cancellations and no-shows

[] may charge 100% of the amount that would otherwise be payable if you do not show up within a reasonable time (including when [] is travelling to you), or give less than seven clear days' notice of cancellation, and [] cannot find alternative work for the scheduled worker it must pay.

9. Privacy

When providing the Services, [] collects, uses, discloses and stores personal and sensitive information about you. The Privacy and Dignity Policy defines this information and how it is handled — you can request a copy and should read it carefully. You make decisions about your information by completing a Privacy Consent Form.

10. Feedback and complaints

You are encouraged to raise feedback, concerns or complaints with [] first. A complaint can be made anonymously by phone on [], or by completing a Feedback and Complaints Form without identifying details and posting it to []. You can complain to [] in person, by email to [], by post to [], or by phone on []. You can also contact the NDIS Commission at any time on 1800 035 544 (TTY 133 677) or at [ndiscommission.gov.au/about/complaints](https://www.ndiscommission.gov.au/about/complaints).

11. Termination

[] and the client may terminate this agreement on at least four weeks' written notice. [] may terminate with immediate effect if: you cease to have NDIS or private funding; the Services can no longer meet your needs or help you achieve your goals; you or your support network fail to communicate changes to your needs; you transfer to another provider; you die; you are unable or unwilling over time to work towards agreed goals or to meet reasonable conditions in your support plan; you breach this agreement or fail to comply with []'s policies; your needs come to exceed []'s skills or capacity; there has been no contact for two months; you or your support network engage in violence, abuse, aggression, theft or property damage or otherwise pose a risk to safe delivery; you ignore risk-management procedures; or you fail to pay fees when due.

12. Indemnity, GST and general

Except to the extent caused by []'s negligence, default or wrongful act, you indemnify [] against liabilities suffered in connection with property damage, injury or death; anything [] is required or permitted to do under this agreement; any Services not being available; [] doing something you should have done but did not do properly; and your breach of this agreement.

The parties agree that the supply of the Services is the supply of reasonable and necessary supports specified in your Plan, that your Plan is expected to remain in effect while the Services are provided, and that you will immediately notify [] if your Plan is replaced or you stop being a participant.

This agreement is governed by the law of the place where [] is located. It may only be amended in writing signed by both parties. A waiver must be in writing. If a provision is invalid it is read down or severed and the rest continues. The parties may execute in counterparts, including electronically. This agreement is the entire agreement and supersedes all prior discussions and agreements. Nothing in it makes the parties partners or agents. Notices may be given by hand, pre-paid post or email to the addresses on page 1.

EXECUTION

Signed for and on behalf of [] (ABN []):

NAME

SIGNATURE

DATE

CLIENT NAME

SIGNATURE

DATE

REPRESENTATIVE NAME

SIGNATURE

DATE